

COMMITTEE ON FEDERALISM AND FAMILY LAW
SENATE AMENDMENTS TO H.B. 2995
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 25-403.03, Arizona Revised Statutes, is amended
3 to read:

4 25-403.03. Domestic violence and child abuse; court
5 considerations; definitions

6 ~~A. Notwithstanding subsection D of this section, joint legal~~
7 ~~decision-making shall not be awarded if the court makes a finding of the~~
8 ~~existence of significant domestic violence pursuant to section 13-3601 or~~
9 ~~if the court finds by a preponderance of the evidence that there has been~~
10 ~~a significant history of domestic violence.~~

11 ~~B. The court shall consider evidence of domestic violence as being~~
12 ~~contrary to the best interests of the child. The court shall consider the~~
13 ~~safety and well-being of the child and of the victim of the act of~~
14 ~~domestic violence to be of primary importance. The court shall consider a~~
15 ~~perpetrator's history of causing or threatening to cause physical harm to~~
16 ~~another person.~~

17 ~~C. To determine if a person has committed an act of domestic~~
18 ~~violence the court, subject to the rules of evidence, shall consider all~~
19 ~~relevant factors including the following:~~

20 ~~1. Findings from another court of competent jurisdiction.~~

21 ~~2. Police reports.~~

22 ~~3. Medical reports.~~

23 ~~4. Records of the department of child safety.~~

24 ~~5. Domestic violence shelter records.~~

25 ~~6. School records.~~

26 ~~7. Witness testimony.~~

27 ~~D. If the court determines that a parent who is seeking sole or~~
28 ~~joint legal decision-making has committed an act of domestic violence~~
29 ~~against the other parent, there is a rebuttable presumption that an award~~

~~1 of sole or joint legal decision-making to the parent who committed the act
2 of domestic violence is contrary to the child's best interests. This
3 presumption does not apply if both parents have committed an act of
4 domestic violence. For the purposes of this subsection, a person commits
5 an act of domestic violence if that person does any of the following:
6 1. Intentionally, knowingly or recklessly causes or attempts to
7 cause sexual assault or serious physical injury.
8 2. Places a person in reasonable apprehension of imminent serious
9 physical injury to any person.
10 3. Engages in a pattern of behavior for which a court may issue an
11 ex parte order to protect the other parent who is seeking child custody or
12 to protect the child and the child's siblings.
13 E. To determine if the parent has rebutted the presumption the
14 court shall consider all of the following:
15 1. Whether the parent has demonstrated that being awarded sole or
16 joint legal decision-making or substantially equal parenting time is in
17 the child's best interests.
18 2. Whether the parent has successfully completed a batterer's
19 prevention program.
20 3. Whether the parent has successfully completed a program of
21 alcohol or drug abuse counseling, if the court determines that counseling
22 is appropriate.
23 4. Whether the parent has successfully completed a parenting class,
24 if the court determines that a parenting class is appropriate.
25 5. If the parent is on probation, parole or community supervision,
26 whether the parent is restrained by a protective order that was granted
27 after a hearing.
28 6. Whether the parent has committed any further acts of domestic
29 violence.
30 F. If the court finds that a parent has committed an act of
31 domestic violence, that parent has the burden of proving to the court's
32 satisfaction that parenting time will not endanger the child or
33 significantly impair the child's emotional development. If the parent
34 meets this burden to the court's satisfaction, the court shall place
35 conditions on parenting time that best protect the child and the other
36 parent from further harm. The court may:
37 1. Order that an exchange of the child must occur in a protected
38 setting as specified by the court.
39 2. Order that an agency specified by the court must supervise
40 parenting time. If the court allows a family or household member to
41 supervise parenting time, the court shall establish conditions that this
42 person must follow during parenting time.
43 3. Order the parent who committed the act of domestic violence to
44 attend and complete, to the court's satisfaction, a program of~~

1 ~~intervention for perpetrators of domestic violence and any other~~
2 ~~counseling the court orders.~~

3 ~~4. Order the parent who committed the act of domestic violence to~~
4 ~~abstain from possessing or consuming alcohol or controlled substances~~
5 ~~during parenting time and for twenty-four hours before parenting time.~~

6 ~~5. Order the parent who committed the act of domestic violence to~~
7 ~~pay a fee for the costs of supervised parenting time.~~

8 ~~6. Prohibit overnight parenting time.~~

9 ~~7. Require a bond from the parent who committed the act of domestic~~
10 ~~violence for the child's safe return.~~

11 ~~8. Order that the address of the child and the other parent remain~~
12 ~~confidential.~~

13 ~~9. Impose any other condition that the court determines is~~
14 ~~necessary to protect the child, the other parent and any other family or~~
15 ~~household member.~~

16 ~~6. The court shall not order joint counseling between a victim and~~
17 ~~the perpetrator of domestic violence. The court may provide a victim with~~
18 ~~written information about available community resources related to~~
19 ~~domestic violence.~~

20 A. IN ANY LEGAL DECISION-MAKING OR PARENTING TIME MATTER, THE COURT
21 SHALL CONSIDER DOMESTIC VIOLENCE AS CONTRARY TO THE BEST INTERESTS OF THE
22 CHILD AND SHALL ASSIGN PRIMARY IMPORTANCE TO THE SAFETY AND WELL-BEING OF
23 BOTH THE CHILD AND DOMESTIC VIOLENCE VICTIM. IF AN EXPRESS OR IMPLIED
24 CONFLICT ARISES BETWEEN THE REQUIREMENTS OF THIS SECTION AND A COMPETING
25 PRESUMPTION, MANDATE OR PUBLIC POLICY IN THIS TITLE [THAT IS NOT DIRECTLY
26 RELATED TO A CHILD'S SAFETY], THE PROVISIONS OF THIS SECTION TAKE
27 PRIORITY.

28 B. IN ANY LEGAL DECISION-MAKING OR PARENTING TIME MATTER, THE COURT
29 SHALL MAKE SPECIFIC AND DETAILED FINDINGS ON THE RECORD ABOUT EACH FACTOR
30 THAT IS REQUIRED BY THIS [SECTION. THE COURT SHALL EXPLAIN IN DETAIL WHY
31 THE COURT'S FINDINGS REGARDING DOMESTIC VIOLENCE SERVE THE CHILD'S BEST
32 INTERESTS, INCLUDING THE PRESUMPTION PRESCRIBED IN SUBSECTION F OF THIS
33 SECTION AND ANY REBUTTAL TO THE PRESUMPTION THAT IS OFFERED PURSUANT TO
34 SUBSECTION G OF THIS SECTION. ON APPEAL, THE LEGAL SUFFICIENCY OF EACH
35 FINDING AND EXPLANATION SHALL BE REVIEWED DE NOVO] [SUBSECTION AND THAT IS
36 PRESENTED THROUGH EVIDENCE ADMITTED AT A TRIAL OR OTHER EVIDENTIARY
37 HEARING]. THE COURT'S FINDINGS MUST [ADDRESS] [INCLUDE] ALL OF THE
38 FOLLOWING:

39 [1. COERCIVE CONTROL.

40 2. EVIDENCE THAT MAY SUPPORT A DOMESTIC VIOLENCE CLAIM.

41 3. THE IMPACT, SEVERITY AND CIRCUMSTANCES OF AN ACT OR ACTS OF
42 DOMESTIC VIOLENCE THAT HAVE OCCURRED.

43 4. THE MANDATORY PRESUMPTION AGAINST AWARDED LEGAL DECISION-MAKING
44 OR PARENTING TIME TO A PARENT WHO HAS COMMITTED AN ACT OR ACTS OF DOMESTIC
45 VIOLENCE.

1 ~~5. WHETHER A PARENT WHO HAS COMMITTED AN ACT OR ACTS OF DOMESTIC~~
2 ~~VIOLENCE REBUTTED THE MANDATORY PRESUMPTION UNDER SUBSECTION F OF THIS~~
3 ~~SECTION.]~~
4 [1. A COMPLETE DESCRIPTION OF THE EVIDENCE THAT JUSTIFIED OR
5 PREVENTED A FINDING PURSUANT TO SUBSECTION C OF THIS SECTION THAT AN ACT
6 OR ACTS OF DOMESTIC VIOLENCE OCCURRED.
7 2. A FULL EXPLANATION WHY THE EVIDENCE PRESENTED PURSUANT TO EACH
8 OF THE CRITERIA PRESCRIBED BY SUBSECTION G OF THIS SECTION DID OR DID NOT
9 REBUT THE MANDATORY PRESUMPTION THAT IS PRESCRIBED BY SUBSECTION F OF THIS
10 SECTION.
11 3. AN EXPLANATION WHY THE COURT'S CHOICE OF REMEDIES PRESCRIBED IN
12 SUBSECTION H OF THIS SECTION IS IN THE CHILD'S BEST INTERESTS.]
13 C. A CLAIM OF AN ACT OR ACTS OF DOMESTIC VIOLENCE SHALL BE
14 ESTABLISHED BY A PREPONDERANCE OF THE EVIDENCE. CORROBORATION FROM
15 EXHIBITS OR WITNESS TESTIMONY IS NOT REQUIRED. SUBJECT TO THE EVIDENTIARY
16 STANDARD APPLIED TO THAT PROCEEDING PURSUANT TO THE ARIZONA RULES OF
17 FAMILY LAW PROCEDURE, THE COURT SHALL CONSIDER ALL OF THE FOLLOWING:
18 1. FACTUAL DETERMINATIONS OF AN ACT OR ACTS OF DOMESTIC VIOLENCE
19 FROM A COURT OF COMPETENT JURISDICTION.
20 2. EVIDENCE THAT IS COLLECTED AND REPORTS THAT ARE PREPARED BY A
21 LAW ENFORCEMENT AGENCY, THE DEPARTMENT OF CHILD SAFETY AND ANY OTHER
22 GOVERNMENT AGENCY.
23 3. THE ALLEGED VICTIM'S MEDICAL OR BEHAVIORAL HEALTH RECORDS, IF
24 THE VICTIM WAIVES THE ASSOCIATED PRIVILEGE OR OTHER RIGHT TO
25 CONFIDENTIALITY.
26 4. RECORDS FROM A SHELTER FOR VICTIMS OF DOMESTIC VIOLENCE AS
27 DEFINED IN SECTION 36-3001.
28 5. EDUCATIONAL AND SCHOOL RECORDS.
29 6. A COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE AGAINST ANY PERSON
30 BY THE PARENT WHO IS THE SUBJECT OF THE ALLEGATION OF COMMITTING AN ACT OR
31 ACTS OF DOMESTIC VIOLENCE.
32 7. WITNESS TESTIMONY.
33 D. IF THE COURT DETERMINES THAT A PARENT COMMITTED AN ACT OR ACTS
34 OF DOMESTIC VIOLENCE, THE COURT SHALL CONSIDER AND WEIGH ALL OF THE
35 FOLLOWING NONEXCLUSIVE FACTORS, AND ANY OTHER RELEVANT CONSIDERATIONS,
36 WHEN ENTERING AN AWARD OF LEGAL DECISION-MAKING, A PARENTING TIME SCHEDULE
37 AND OTHER FEATURES OF THE PARENTING PLAN REQUIRED BY SECTION 25-403.02.
38 THE COURT SHALL DETERMINE WHETHER THE ACT OR ACTS OF DOMESTIC VIOLENCE
39 MEET ANY OF THE FOLLOWING:
40 1. RISKED OR INFLICTED PHYSICAL INJURY OR EMOTIONAL TRAUMA ON THE
41 OTHER PARENT OR CHILD.
42 2. INVOLVED THE THREAT OR USE OF A FIREARM OR OTHER DANGEROUS
43 WEAPON.
44 3. INVOLVED THE THREAT OR USE OF STRANGULATION AS DESCRIBED IN
45 SECTION 13-1204, SUBSECTION B, PARAGRAPH 1.

1 4. INVOLVED MULTIPLE FORMS OF COERCIVE CONTROL, INCLUDING WHETHER
2 PHYSICAL VIOLENCE, NO MATTER HOW INFREQUENT, WAS USED TO INTENSIFY THE
3 IMPACT OF OTHER FORMS OF COERCIVE CONTROL.

4 5. COMPROMISED THE VICTIM'S EDUCATION, EMPLOYMENT OR CAREER GOALS.

5 6. SIGNIFICANTLY DAMAGED THE VICTIM'S REPUTATION OR RELATIONSHIPS
6 WITH FAMILY, FRIENDS OR OTHERS.

7 7. CREATED A QUESTION AS TO WHETHER THE PARENT WHO COMMITTED THE
8 ACT OR ACTS OF DOMESTIC VIOLENCE CAN SERVE AS A SUITABLE ROLE MODEL FOR
9 THE CHILD, INCLUDING WITH RESPECT TO PARENTING TIME.

10 8. REVEALED A DISDAIN FOR THE OTHER PARENT OR CHILD THAT WOULD
11 COMPLICATE OR PREVENT EFFECTIVE LEGAL DECISION-MAKING.

12 9. ARE DENIED, DEFLECTED OR MINIMIZED DURING TREATMENT, FORENSIC
13 ASSESSMENT, FORMAL DISCOVERY OR COURTROOM PROCEEDINGS BY THE PARENT WHO
14 COMMITTED THE ACT OR ACTS OF DOMESTIC VIOLENCE.

15 10. OCCURRED OVER A PERIOD OF TIME AND WITH SUFFICIENT SEVERITY OR
16 FREQUENCY THAT THE PASSAGE OF TIME OR REMOTENESS OF AN EARLIER ACT OR ACTS
17 OF DOMESTIC VIOLENCE CONSTITUTE AN AGGRAVATING AND NOT A MITIGATING
18 FACTOR.

19 E. ~~[WHEN WEIGHING EVIDENCE OF A COLLATERAL ACT OR ACTS OF DOMESTIC~~
20 ~~VIOLENCE, THE COURT MAY CONSIDER THE PASSAGE OF TIME OR PRIOR JUDICIAL~~
21 ~~REVIEW. THE COURT MAY NOT REFUSE EVIDENCE OF A COLLATERAL ACT OR ACTS OF~~
22 ~~DOMESTIC VIOLENCE ON THE GROUNDS THAT THE ALLEGED ACT OR ACTS OF DOMESTIC~~
23 ~~VIOLENCE OR A RELATED LEGAL CLAIM HAS] [THE COURT SHALL CONSIDER A~~
24 ~~COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE AS DESCRIBED IN SUBSECTION C,~~
25 ~~PARAGRAPH 6 OF THIS SECTION IF THE COLLATERAL ACT OR ACTS OF DOMESTIC~~
26 ~~VIOLENCE TEND TO PROVE THE EXISTENCE OF COERCIVE CONTROL, EVEN IF THE~~
27 ~~COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE HAVE] BEEN DECIDED, [PREDATES]~~
28 ~~[PREDATE] THE LAST DECREE [ISSUED PURSUANT TO THIS CHAPTER] OR COULD HAVE~~
29 ~~BEEN LITIGATED AT ANOTHER TIME OR PLACE. [THE COURT SHALL EVALUATE~~
30 ~~WHETHER EVIDENCE OF A COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE DOES ANY~~
31 ~~OF THE FOLLOWING:~~

32 1. ~~ESTABLISHES RECURRING BEHAVIOR BY THE PARENT ALLEGED TO HAVE~~
33 ~~COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE, INCLUDING COERCIVE CONTROL.~~

34 2. ~~PROVES THE MOTIVE, OPPORTUNITY, INTENT, PREPARATION, PLAN,~~
35 ~~KNOWLEDGE, IDENTITY OR ABSENCE OF MISTAKE OR ACCIDENT BY THE PARENT~~
36 ~~ALLEGED TO HAVE COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE.~~

37 3. ~~EXPLAINS AN OTHERWISE EXCESSIVE RESPONSE BY THE ALLEGED VICTIM~~
38 ~~TO A MORE RECENT EVENT AS WELL AS OTHER REACTIVE OR PROTECTIVE BEHAVIOR BY~~
39 ~~THE ALLEGED VICTIM.]~~

40 F. IF THE COURT DETERMINES THAT A PARENT COMMITTED AN ACT OR ACTS
41 OF DOMESTIC VIOLENCE, THERE IS A MANDATORY REBUTTABLE PRESUMPTION THAT AN
42 AWARD OF LEGAL DECISION-MAKING OR PARENTING TIME TO THE PARENT WHO
43 COMMITTED THE ACT OR ACTS OF DOMESTIC VIOLENCE IS CONTRARY TO THE CHILD'S
44 BEST INTERESTS. THE COURT MAY NOT REQUIRE THE VICTIM OR CHILD TO PROVE
45 THAT SHARED LEGAL DECISION-MAKING OR PARENTING TIME WOULD HARM THE CHILD.

1 ~~[A REBUTTABLE PRESUMPTION DOES NOT ARISE IF MUTUAL ACTS OF DOMESTIC~~
2 ~~VIOLENCE OCCURRED. THE COURT MAY NOT DESCRIBE AN ACT OR ACTS OF DOMESTIC~~
3 ~~VIOLENCE AS MUTUAL OR ENTER A LEGAL DECISION-MAKING OR PARENTING TIME~~
4 ~~ORDER THAT TREATS DOMESTIC VIOLENCE AS MUTUAL, UNLESS THE EVIDENCE~~
5 ~~ESTABLISHES THAT BOTH PARENTS HAD THE SAME MOTIVE FOR THEIR ACTIONS,~~
6 ~~LACKED JUSTIFICATION TO SIMILAR DEGREES AND INFLICTED COMPARABLE HARM.]~~
7 [IF THE COURT FINDS THAT BOTH PARENTS HAVE COMMITTED AN ACT OR ACTS OF
8 DOMESTIC VIOLENCE, EACH PARENT IS SUBJECT TO THE MANDATORY REBUTTABLE
9 PRESUMPTION DESCRIBED IN THIS SUBSECTION. IF NEITHER PARENT CAN REBUT THE
10 MANDATORY PRESUMPTION, THE COURT SHALL CONSIDER REFERRING THE CHILD FOR
11 DEPENDENCY PROCEEDINGS PURSUANT TO TITLE 8, CHAPTER 4, ARTICLE 8 IF A
12 REFERRAL IS CONSISTENT WITH THE BEST INTERESTS OF THE CHILD.]

13 G. TO DETERMINE WHETHER THE PARENT WHO COMMITTED AN ACT OR ACTS OF
14 DOMESTIC VIOLENCE HAS REBUTTED THE MANDATORY PRESUMPTION PRESCRIBED IN
15 SUBSECTION F OF ~~[THE]~~ [THIS] SECTION, THE COURT SHALL DO ALL OF THE
16 FOLLOWING:

17 1. REVIEW THE ~~[COURT'S FINDINGS PRESCRIBED BY SUBSECTION D OF THIS~~
18 ~~SECTION AND APPLY THE COURT'S FINDINGS TO THE REBUTTAL DETERMINATION]~~
19 [CONSIDERATIONS THAT ARE PRESCRIBED IN SUBSECTION D OF THIS SECTION AND
20 MAKE FINDINGS AND EXPLANATIONS AS REQUIRED BY SUBSECTION B, PARAGRAPH 2 OF
21 THIS SECTION].

22 2. CONSIDER A COLLATERAL ACT OR ACTS OF DOMESTIC VIOLENCE BY THE
23 PARENT AGAINST ANYONE.

24 3. NOT TREAT ANY OF THE FOLLOWING CONSIDERATIONS AS MITIGATION OR
25 RELEVANT TO THE REBUTTAL OF THE MANDATORY PRESUMPTION:

26 (a) THE CHILD'S ABSENCE FROM THE LOCATION WHERE THE ACT OR ACTS OF
27 DOMESTIC VIOLENCE OCCURRED.

28 (b) THE CHILD'S UNAWARENESS THAT A PARENT COMMITTED THE ACT OR ACTS
29 OF DOMESTIC VIOLENCE.

30 (c) THE CHILD'S PREFERENCE FOR REINSTATING, MAINTAINING OR
31 INCREASING PARENTING TIME WITH A PARENT WHO COMMITTED THE ACT OR ACTS OF
32 DOMESTIC VIOLENCE.

33 4. CONSIDER THE PARENT'S ATTENDANCE AT A DOMESTIC VIOLENCE
34 TREATMENT PROGRAM. THE COURT MAY NOT CONSIDER A CERTIFICATE OF COMPLETION
35 ALONE AS PROOF OF REHABILITATION. A PARENT WHO WISHES TO USE ATTENDANCE
36 AT A DOMESTIC VIOLENCE TREATMENT PROGRAM AS REBUTTAL EVIDENCE MUST DO ALL
37 OF THE FOLLOWING:

38 (a) WAIVE THE ASSOCIATED STATUTORY PRIVILEGE OR OTHER
39 CONFIDENTIALITY NECESSARY TO RELEASE THAT PERSON'S TREATMENT RECORDS TO
40 THE COURT AND THE VICTIM.

41 (b) ESTABLISH THAT THE TREATMENT PROGRAM WAS BOTH RELEVANT AND
42 PROPORTIONATE TO THE ACT OR ACTS OF DOMESTIC VIOLENCE FOR WHICH THE PARENT
43 WAS ADJUDICATED.

44 (c) DEMONSTRATE AN UNDERSTANDING OF HOW THE PARENT'S ACT OR ACTS OF
45 DOMESTIC VIOLENCE HARMED THE FAMILY.

1 (d) PROVE THAT THE TREATMENT PROGRAM ADDRESSED AND HELPED REDUCE
2 ANY TENDENCY TO MINIMIZE OR RATIONALIZE THE ACT OR ACTS OF DOMESTIC
3 VIOLENCE.

4 5. EVALUATE WHETHER A PARENT'S CHOSEN TREATMENT PROGRAM WAS
5 RELEVANT AND PROPORTIONATE TO THAT PERSON'S HISTORY OF DOMESTIC VIOLENCE.
6 IN MAKING THIS EVALUATION, THE COURT SHALL CONSIDER THE CRITERIA OUTLINED
7 IN THE ARIZONA ADMINISTRATIVE CODE THAT GOVERNS TREATMENT STANDARDS FOR
8 MISDEMEANOR DOMESTIC VIOLENCE OFFENDERS.

9 H. IF THE PARENT WHO COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE
10 FAILS TO OVERCOME THE MANDATORY PRESUMPTION PRESCRIBED IN SUBSECTION F OF
11 THIS SECTION, THE COURT SHALL DO ALL OF THE FOLLOWING:

12 1. NOT GRANT JOINT LEGAL DECISION-MAKING OR SOLE LEGAL
13 DECISION-MAKING AUTHORITY TO THAT PARENT.

14 2. IMPOSE RESTRICTIONS ON THE MANNER AND FREQUENCY OF THAT PARENT'S
15 INTERACTIONS WITH THE CHILD THAT ARE CONSISTENT WITH THE PROVEN ACT OR
16 ACTS OF DOMESTIC VIOLENCE, INCLUDING ANY OF THE FOLLOWING:

17 (a) ORDER THAT AN EXCHANGE OF THE CHILD OCCUR IN A PROTECTED
18 LOCATION OR A SAFE EXCHANGE LOCATION AS PRESCRIBED IN SECTION 25-403.10
19 THAT IS SPECIFIED BY THE COURT.

20 (b) LIMIT PARENTING TIME, INCLUDING A PROHIBITION ON OVERNIGHT
21 PARENTING TIME WITH THE CHILD.

22 (c) DESIGNATE A PROFESSIONAL AGENCY OR ONE OR MORE PERSONS TO
23 SUPERVISE PARENTING TIME. THE COURT MAY NOT APPOINT THE VICTIM OF THE ACT
24 OR ACTS OF DOMESTIC VIOLENCE TO SERVE AS THE SUPERVISOR, WHETHER ALONE OR
25 WITH ANOTHER PERSON. THE COURT MAY NOT APPOINT A PERSON TO SUPERVISE
26 PARENTING TIME UNLESS THE PARENT BEING SUPERVISED AFFIRMS TO THE COURT
27 THAT THE APPOINTED SUPERVISOR WILL DO ALL OF THE FOLLOWING:

28 (i) RECEIVE AND READ THE COURT'S ORDER.

29 (ii) PROVIDE A RELIABLE TELEPHONE NUMBER, EMAIL ADDRESS AND
30 RESIDENTIAL ADDRESS TO BOTH PARENTS.

31 (iii) INTERVENE AND CONTACT AN APPROPRIATE LAW ENFORCEMENT AGENCY,
32 THE DEPARTMENT OF CHILD SAFETY AND THE OTHER PARENT IF THE SUPERVISED
33 PARENT'S BEHAVIOR ENDANGERS THE CHILD OR BECOMES PSYCHOLOGICALLY ABUSIVE.

34 (iv) APPEAR FOR FUTURE COURT PROCEEDINGS AND TESTIFY REGARDING THE
35 SUPERVISION.

36 (d) ORDER THE PARENT WHO COMMITTED THE ACT OR ACTS OF DOMESTIC
37 VIOLENCE TO PAY A FEE FOR THE COSTS OF SUPERVISED PARENTING TIME.

38 (e) SUSPEND ACCESS TO THE CHILD, IN ANY FORM, UNTIL THE PARENT WHO
39 COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE CAN PETITION FOR A
40 MODIFICATION OF LEGAL DECISION-MAKING OR PARENTING TIME PURSUANT TO
41 SECTION 25-411.

42 (f) ORDER THE PARENT WHO COMMITTED THE ACT OR ACTS OF DOMESTIC
43 VIOLENCE TO ATTEND AND COMPLETE A PROGRAM OF INTERVENTION FOR PERPETRATORS
44 OF DOMESTIC VIOLENCE AND ANY OTHER COUNSELING THE COURT ORDERS.

1 (g) IF THE COURT FINDS THAT THE PARENT WHO COMMITTED THE ACT OR
2 ACTS OF DOMESTIC VIOLENCE HAS ALSO ABUSED ALCOHOL, OTHER INTOXICANTS OR
3 CONTROLLED SUBSTANCES, THE COURT MAY ORDER THAT PARENT TO ABSTAIN FROM
4 POSSESSING OR CONSUMING ALCOHOL, OTHER INTOXICANTS OR CONTROLLED
5 SUBSTANCES.

6 (h) REQUIRE A BOND FOR THE CHILD'S SAFE RETURN FROM THE PARENT WHO
7 COMMITTED THE ACT OR ACTS OF DOMESTIC VIOLENCE.

8 (i) ORDER THAT THE ADDRESS OF THE CHILD AND OTHER PARENT REMAIN
9 CONFIDENTIAL.

10 (j) IMPOSE ANY OTHER CONDITION THAT THE COURT DETERMINES IS
11 NECESSARY TO PROTECT THE CHILD, THE OTHER PARENT AND ANY OTHER FAMILY OR
12 HOUSEHOLD MEMBER.

13 I. THE COURT MAY NOT ORDER A VICTIM OF DOMESTIC VIOLENCE, WHETHER
14 THE CHILD OR A PARENT, TO JOIN THE PARENT WHO COMMITTED AN ACT OR ACTS OF
15 DOMESTIC VIOLENCE IN ANY INPATIENT OR OUTPATIENT TREATMENT PROGRAM,
16 COUNSELING PROGRAM OR FORENSIC ASSESSMENT, WHETHER TELEPHONIC, VIRTUAL OR
17 IN PERSON.

18 [J. IF A PARENT WHO IS ADJUDICATED TO HAVE COMMITTED AN ACT OR ACTS
19 OF DOMESTIC VIOLENCE FAILS TO OVERCOME THE MANDATORY PRESUMPTION
20 PRESCRIBED IN SUBSECTION F OF THIS SECTION, THE PRESUMPTION SHALL REMAIN
21 UNTIL A SUBSEQUENT MODIFICATION PROCEEDING PURSUANT TO SECTION 25-411.]

22 ~~H.~~ ~~[J.]~~ [K.] The court may request or order the services of the
23 department of child safety if the court believes that a child may be the
24 victim of child abuse or neglect as defined in section 8-201.

25 ~~I.~~ ~~[K.]~~ [L.] In determining whether the absence or relocation of
26 a parent shall be weighed against that parent in determining legal
27 decision-making or parenting time, the court may consider whether the
28 absence or relocation was caused by an act of domestic violence by the
29 other parent.

30 ~~[L.]~~ [M.] FOR THE PURPOSES OF THIS SECTION:

31 1. "COERCIVE CONTROL":

32 (a) MEANS A PATTERN OF THREATENING, HUMILIATING OR INTIMIDATING
33 ACTIONS THAT IS USED TO HARM, PUNISH OR FRIGHTEN A PERSON.

34 (b) INCLUDES ALL OF THE FOLLOWING:

35 (i) A PATTERN OF BEHAVIOR THAT TAKES AWAY A PERSON'S LIBERTY OR
36 FREEDOM.

37 (ii) STRIPPING A PERSON'S SENSE OF SELF, BODILY INTEGRITY AND HUMAN
38 RIGHTS.

39 (iii) ISOLATING A PERSON FROM FRIENDS AND FAMILY.

40 (iv) DEPRIVING A PERSON OF INDEPENDENCE.

41 (v) REGULATING A PERSON'S EVERYDAY BEHAVIOR.

42 (vi) MONITORING, SURVEILLING, REGULATING OR CONTROLLING A PERSON'S
43 FINANCES, ECONOMIC RESOURCES OR ACCESS TO SERVICES, OR THOSE OF THE
44 PERSON'S CHILD OR RELATIVE.

1 (vii) MONITORING, SURVEILLING, REGULATING OR CONTROLLING A PERSON'S
2 ACTIVITIES, COMMUNICATIONS OR MOVEMENTS, INCLUDING THROUGH THE USE OF
3 TECHNOLOGY, OR THOSE OF THE PERSON'S CHILD OR RELATIVE.

4 (viii) NAME-CALLING, DEGRADING OR DEMEANING A PERSON OR THE
5 PERSON'S CHILD OR RELATIVE ON A FREQUENT BASIS.

6 (ix) THREATENING TO HARM OR KILL A PERSON OR THE PERSON'S CHILD OR
7 RELATIVE, INCLUDING WEARING, ACCESSING, DISPLAYING, USING OR CLEANING A
8 WEAPON IN AN INTIMIDATING OR THREATENING MANNER.

9 (x) THREATENING TO COMMIT SUICIDE OR SELF HARM, WHEN USED AS A
10 METHOD OF COERCION, CONTROL, PUNISHMENT, INTIMIDATION OR RETALIATION
11 AGAINST A PERSON.

12 (xi) THREATENING TO HARM OR KILL AN ANIMAL THAT A PERSON OR THE
13 PERSON'S CHILD OR RELATIVE HAS AN EMOTIONAL BOND WITH.

14 (xii) THREATENING TO PUBLISH A PERSON'S SENSITIVE PERSONAL
15 INFORMATION, INCLUDING SEXUALLY EXPLICIT MATERIAL, OR THOSE OF THE
16 PERSON'S CHILD OR RELATIVE.

17 (xiii) THREATENING TO MAKE REPORTS TO LAW ENFORCEMENT AUTHORITIES
18 WITHOUT REASONABLE CAUSE.

19 (xiv) DAMAGING A PERSON'S PROPERTY OR HOUSEHOLD GOODS, OR THOSE OF
20 THE PERSON'S CHILD OR RELATIVE.

21 (xv) THREATENING A PERSON OR THE PERSON'S CHILD OR RELATIVE WITH
22 DEPORTATION, CONTACTING AUTHORITIES BASED ON PERCEIVED OR ACTUAL
23 IMMIGRATION STATUS, WITHHOLDING ESSENTIAL DOCUMENTS REQUIRED FOR
24 IMMIGRATION OR THREATENING TO WITHDRAW OR INTERFERE WITH AN ACTIVE
25 IMMIGRATION APPLICATION OR PROCESS.

26 (xvi) FORCING A PERSON OR THE PERSON'S CHILD OR RELATIVE TO TAKE
27 PART IN CRIMINAL ACTIVITIES OR CHILD ABUSE.

28 2. "COLLATERAL ACT" MEANS CONDUCT THAT, IN TIME, LOCATION, SEQUENCE
29 AND CAUSATION, IS SUBSTANTIALLY DISTINCT FROM THE OCCURRENCES OR ACTS AT
30 ISSUE BEFORE THE COURT.

31 3. "DOMESTIC VIOLENCE":

32 (a) MEANS, WHEN PERPETRATED BY ONE PARENT AGAINST THE OTHER PARENT
33 OR AGAINST A MINOR CHILD LIVING IN EITHER PARENT'S HOUSEHOLD, EITHER OF
34 THE FOLLOWING:

35 (i) DOMESTIC VIOLENCE AS DEFINED IN SECTION 13-3601.

36 (ii) COERCIVE CONTROL.

37 (b) DOES NOT INCLUDE DEFENSE OF SELF OR ANOTHER IF THE DEFENSIVE
38 ACTS WERE PROPORTIONATE TO THE ASSAULT AND THE PARENT CLAIMING
39 SELF-DEFENSE DID NOT PROVOKE THE ALTERCATION.

40 Sec. 2. Section 25-404, Arizona Revised Statutes, is amended to
41 read:

42 25-404. Temporary orders

43 A. A party to a legal decision-making and parenting time proceeding
44 may move for a temporary order. This motion must be supported by
45 pleadings as provided in section 25-411. The court may award temporary

1 legal decision-making and parenting time under the standards of section
2 25-403 after a hearing, or, if there is no objection, solely on the basis
3 of the pleadings.

4 B. If a proceeding for dissolution of marriage or legal separation
5 is dismissed, any temporary legal decision-making or parenting time order
6 is vacated unless a parent or the child's custodian moves that the
7 proceeding continue as a legal decision-making or parenting time
8 proceeding and the court finds, after a hearing, that the circumstances of
9 the parents and the best interest of the child require that a legal
10 decision-making or parenting time plan decree be issued.

11 C. If a legal decision-making or parenting time proceeding
12 commenced in the absence of a petition for dissolution of marriage or
13 legal separation is dismissed, any temporary ~~custody~~ **LEGAL DECISION-MAKING**
14 **OR PARENTING TIME** order thereby is vacated.

15 D. IF A PARTY TO A PROCEEDING FOR A TEMPORARY ORDER FOR LEGAL
16 DECISION-MAKING OR PARENTING TIME PURSUANT TO THIS SECTION ALLEGES THAT
17 THE OTHER PARTY COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE AS DEFINED
18 IN SECTION 25-403.03, THE COURT SHALL MAKE WRITTEN FINDINGS REGARDING THE
19 ALLEGATION OF THE ACT OR ACTS OF DOMESTIC VIOLENCE PURSUANT TO THE
20 REQUIREMENTS OF SECTION 25-403.03.

21 Sec. 3. Section 25-411, Arizona Revised Statutes, is amended to
22 read:

23 25-411. Modification of legal decision-making or parenting
24 time; affidavit; contents; military families; acts
25 of domestic violence

26 A. A person shall not make a motion to modify a legal
27 decision-making or parenting time decree earlier than one year after its
28 date, unless the court ~~permits~~ **ALLOWS** it to be made on the basis of
29 affidavits that there is reason to believe the child's present environment
30 may seriously endanger the child's physical, mental, moral or emotional
31 health. At any time after a joint legal decision-making order is entered,
32 a parent may petition the court for modification of the order on the basis
33 of evidence that domestic violence involving a violation of section
34 13-1201 or 13-1204, spousal abuse or child abuse occurred since the entry
35 of the joint legal decision-making order. Six months after a joint legal
36 decision-making order is entered, a parent may petition the court for
37 modification of the order based on the failure of the other parent to
38 comply with the provisions of the order. A motion or petition to modify
39 an order shall meet the requirements of this section. Except as otherwise
40 provided in this section, if a parent is a member of the United States
41 armed forces, the court shall consider the terms of that parent's military
42 family care plan to determine what is in the child's best interest during
43 that parent's military deployment.

1 B. If the parent with whom the parent's child resides a majority of
2 the time receives temporary duty, deployment, activation or mobilization
3 orders from the United States military that involve moving a substantial
4 distance away from the parent's residence, a court shall not enter a final
5 order modifying parental rights and responsibilities and parent-child
6 contact in an existing order until ninety days after the deployment ends,
7 unless a modification is agreed to by the deploying parent.

8 C. The court shall not consider a parent's absence caused by
9 deployment or mobilization or the potential for future deployment or
10 mobilization as the sole factor supporting a real, substantial and
11 unanticipated change in circumstances pursuant to this section.

12 D. On motion of a deploying or nondeploying, mobilizing or absent
13 military parent, the court, after a hearing, shall enter a temporary order
14 modifying parental rights and responsibilities or parent-child contact
15 during the period of deployment or mobilization if:

16 1. A military parent who has legal decision-making or parenting
17 time pursuant to an existing court order has received notice from military
18 leadership that the military parent will deploy or mobilize in the near
19 future.

20 2. The deployment or mobilization would have a material effect on
21 the military parent's ability to exercise parental rights and
22 responsibilities or parent-child contact.

23 E. On motion of a deploying parent, if reasonable advance notice is
24 given and good cause is shown, the court shall allow that parent to
25 present testimony and evidence by electronic means with respect to
26 parenting time or parent-child contact matters instituted pursuant to this
27 section if the deployment of that parent has a material effect on that
28 parent's ability to appear in person at a regularly scheduled hearing.
29 For the purposes of this subsection, "electronic means" includes
30 communication by telephone or video teleconference.

31 F. The court shall hear motions for modification because of
32 deployment as expeditiously as possible.

33 G. If a military parent receives military temporary duty,
34 deployment, activation or mobilization orders that involve moving a
35 substantial distance away from the military parent's residence or that
36 otherwise have a material effect on the military parent's ability to
37 exercise parenting time, at the request of the military parent, for the
38 duration of the military parent's absence the court may delegate the
39 military parent's parenting time, or a portion of that time, to a child's
40 family member, including a stepparent, or to another person who is not the
41 child's parent but who has a close and substantial relationship to the
42 minor child, if the court determines that is in the child's best interest.
43 The court shall not allow the delegation of parenting time to a person who
44 would be subject to limitations on parenting time. The parties shall
45 attempt to resolve disputes regarding delegation of parenting time through

1 the dispute resolution process specified in their parenting plan, unless
2 excused by the court for good cause shown. A court order pursuant to this
3 subsection does not establish separate rights to parenting time for a
4 person other than a parent.

5 H. All temporary modification orders pursuant to this section shall
6 include a specific transition schedule to facilitate a return to the
7 predeployment order within ten days after the deployment ends, taking into
8 consideration the child's best interests.

9 I. A decree or order that a court enters in contemplation of or
10 during the military deployment of a parent outside of the continental
11 United States shall specifically reference the deployment and include
12 provisions governing the legal decision-making or parenting time
13 arrangements, or both, of the minor child after the deployment ends.
14 Either parent may file a petition with the court after the deployment ends
15 to modify the decree or order, in compliance with subsection ~~F~~ M of this
16 section. The court shall hold a hearing or conference on the petition
17 within thirty days after the petition is filed.

18 J. The court may modify an order granting or denying parenting time
19 rights whenever modification would serve the best interest of the child,
20 but the court shall not restrict a parent's parenting time rights unless
21 it finds that the parenting time would endanger seriously the child's
22 physical, mental, moral or emotional health.

23 K. If after a legal decision-making or parenting time order is in
24 effect one of the parents is charged with a dangerous crime against
25 children as defined in section 13-705, child molestation as defined in
26 section 13-1410 or an act of domestic violence as prescribed in section
27 13-3601 in which the victim is a minor, the other parent may petition the
28 court for an expedited hearing. Pending the expedited hearing, the court
29 may suspend parenting time or change legal decision-making ex parte.

30 ~~[L. AN ALLEGATION OF AN ACT OR ACTS OF DOMESTIC VIOLENCE AS DEFINED~~
31 ~~IN SECTION 25-403.03 SHALL BE A PRIMARY FACTOR IN THE COURT'S~~
32 ~~CONSIDERATION OF MODIFICATION OF A LEGAL DECISION-MAKING OR PARENTING TIME~~
33 ~~ORDER. THE COURT SHALL ALLOW A PARENT TO PRESENT EVIDENCE OF AN ACT OR~~
34 ~~ACTS OF DOMESTIC VIOLENCE THAT OCCURRED BEFORE THE EXISTING LEGAL~~
35 ~~DECISION-MAKING OR PARENTING TIME ORDER.]~~

36 [L. IN A PROCEEDING FOR MODIFICATION OF LEGAL DECISION-MAKING OR
37 PARENTING TIME, THE COURT SHALL DECIDE A NEW ALLEGATION OF AN ACT OR ACTS
38 OF DOMESTIC VIOLENCE BY APPLYING THE SAME PUBLIC POLICY, PRIORITIES,
39 PROCEDURES AND DEFINITIONS PRESCRIBED IN SECTION 25-403.03. A PARENT WHO
40 HAS BEEN ADJUDICATED TO HAVE COMMITTED AN ACT OR ACTS OF DOMESTIC VIOLENCE
41 AND WHO PREVIOUSLY FAILED TO REBUT THE MANDATORY PRESUMPTION PRESCRIBED IN
42 SECTION 25-403.03, SUBSECTION F REMAINS SUBJECT TO THE SAME PRESUMPTION IN
43 ANY MODIFICATION PROCEEDING THAT IS BROUGHT PURSUANT TO THIS SECTION,
44 REGARDLESS OF THE ALLEGATIONS THAT ARE MADE IN THE NEW MODIFICATION
45 PLEADINGS. THE QUESTION OF WHETHER EVIDENCE NOW EXISTS TO OVERCOME THE

1 MANDATORY PRESUMPTION PRESCRIBED IN SECTION 25-403.03, SUBSECTION F SHALL
2 BE RESOLVED, AS A PRELIMINARY MATTER, WHEN THE COURT DECIDES WHETHER A
3 SUFFICIENT CHANGE OF CIRCUMSTANCES HAS OCCURRED TO ALLOW A MODIFICATION OF
4 A LEGAL DECISION-MAKING OR PARENTING TIME ORDER.]

5 ~~+~~ M. To modify any type of legal decision-making or parenting
6 time order a person shall submit an affidavit or verified petition setting
7 forth detailed facts supporting the requested modification and shall give
8 notice, together with a copy of the affidavit or verified petition, to
9 other parties to the proceeding, who may file opposing affidavits. The
10 court shall deny the motion unless it finds that adequate cause for
11 hearing the motion is established by the pleadings, in which case it shall
12 set a date for hearing on why the requested modification should not be
13 granted.

14 ~~M.~~ N. The court shall assess attorney fees and costs against a
15 party seeking modification if the court finds that the modification action
16 is vexatious and constitutes harassment.

17 ~~N.~~ O. Subsection ~~+~~ M of this section does not apply if the
18 requested relief is for the modification or clarification of parenting
19 time and not for a change of legal decision-making.

20 Sec. 4. Short title

21 This act may be cited as the "Alec and Lydia Act".

22 Enroll and engross to conform

23 Amend title to conform

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